

23CHCV01671 23CHCV01671

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-18

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DEFENDANTS' MOTION (1) TO COMPEL FURTHER DEPOSITION OF PLAINTIFF, (2) TO COMPEL NEUROPSYCHOLOGICAL EXAMINATION OF PLAINTIFF, (3) TO COMPEL PSYCHIATRIC EXAMINATION OF PLAINTIFF, AND (4) TO COMPEL SECOND SPINAL/ORTHOPEDIC EXAMINATION OF PLAINTIFF

Motion filed on August 21, 2026.

MOVING PARTY: City of San Fernando and Robert Louis Gallegos (collectively, Defendants).

RESPONDING PARTY: Lorena Aguirre De Gonzalez (Plaintiff).

NOTICE: OK.

RELIEF REQUESTED: Defendants seek a second deposition of Plaintiff and additional neuropsychological, psychiatric, spinal/orthopedic, and physical medicine examinations.

RULING: Denied.

BACKGROUND

On June 9, 2023, Plaintiff filed the Complaint alleging negligent operation of a motor vehicle, vicarious liability, and negligent hiring, training, supervision, retention, and entrustment.

On August 11, 2026, Defendants filed an ex parte application seeking to compel a second deposition of Plaintiff, a neuropsychological examination by Dr. Taylor Kuhn, a psychiatric examination by Dr. Praveen Kambam, and a second

spinal/orthopedic examination by Dr. Mark Spoonamore. On August 13, 2026, the Court denied the application without prejudice to a properly noticed motion and did not reach the merits.

On August 21, 2026, Defendants filed the present motion seeking the same relief, supported by a “Statement of Disputed Matters.” On August 24, 2026, Defendants filed a supplemental declaration additionally requesting an examination by Dr. Mechel Henry, a physical medicine and rehabilitation and pain management physician. Plaintiff opposed on September 4, 2026. Defendants replied on September 11, 2026.

DISCUSSION

Discovery Cutoff

“Discovery is considered completed on the day a response is due or on the day a deposition begins.” (Code Civ. Proc., § 2024.010.) “Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” (Code Civ. Proc., § 2024.020, subd. (a).) “On motion of any party, the court may grant leave to complete discovery proceedings . . . closer to the initial trial date.” (Code Civ. Proc., § 2024.050, subd. (a).) Such a motion “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Ibid.)

A court abuses its discretion by granting post-cutoff discovery without first deciding a properly presented request for relief under section 2024.050. (Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc. (2008) 165 Cal.App.4th 1568, 1586-1588.) The request may be combined with the underlying discovery motion. (Id. at p. 1589, fn. 26.)

Here, pursuant to the parties’ December 4, 2025 joint stipulation, the Court continued trial to October 5, 2026 and ordered that all discovery and motion cutoff dates trail the new trial date. (12/4/25 Stipulation at pp. 4-5.) The resulting general discovery-completion deadline was September 8, 2026, and the discovery-motion hearing deadline is September 21, 2026.

Defendants seek Plaintiff’s second deposition on September 23, 2026. (Mot. at p. 2.) Defendants also seek examinations by Dr. Kuhn on September 21, Dr. Spoonamore on September 28, and Dr. Kambam on October 1. (Ibid.) The supplemental declaration additionally seeks an examination by Dr. Henry on a date to be determined. (Alderman Supp. Decl. ¶ 5.) Each discovery proceeding the Court is presently asked to order would therefore occur after the September 8, 2026 cutoff.

In support, Defendants state that the Kuhn and Kambam examinations were previously noticed but were deferred while the parties pursued mediation because Plaintiff’s head-injury claim did not then appear sufficiently serious. (Mot. at pp. 4-5; Alderman Decl. ¶ 17.) Defendants state that the examinations were noticed again after the July mediation. (Mot. at p. 5; Alderman Decl. ¶ 17.) Defendants also rely on Plaintiff’s August 14 supplemental discovery responses identifying continuing cognitive, psychological, and physical complaints and additional treatment. (Alderman Decl. ¶¶ 20-22.) Plaintiff’s August 17 expert designation identifies Dr. Daniel Franc as a retained neurology and neuroscience expert and Dr. José L. Fuentes as a retained clinical neuropsychologist. (Alderman Decl. ¶ 23.)

Plaintiff responds that Defendants were already aware of her cognitive complaints and the possibility of another cervical fusion from her October 2024 deposition. (Opp. at pp. 5-6.) Plaintiff further points out that Defendants had noticed the Kuhn and Kambam examinations in 2025, but neither examination occurred. (Opp. at pp. 6-7.) Plaintiff also argues that Defendants knew of the October 27, 2025 cervical fusion by December 4, 2025, but did not demand the second Spoonamore examination until August 19, 2026. (Opp. at p. 7.) Plaintiff contends that Defendants’ settlement efforts and assessment of the seriousness of the head-injury claim do not justify completing the discovery after the cutoff. (Opp. at p. 13.) Plaintiff further argues that conducting the requested discovery in the final weeks before trial would disrupt trial preparation and threaten the October 5 trial date. (Opp. at p. 14.)

Although several of the requested proceedings had been noticed for dates before the cutoff, absent a stipulation, the Kuhn and Kambam mental examinations and the additional Spoonamore and Henry physical examinations required leave of court. (Code Civ. Proc., § 2032.310, subd. (a).) Plaintiff's second deposition likewise required a stipulation or leave of court for good cause. (Code Civ. Proc., § 2025.610, subd. (b).) Plaintiff objected to the second deposition on July 16, 2026, and advised during the July 27 meet and confer that she would not stipulate to the second deposition or the Kuhn and Kambam examinations. (Downey Decl. ¶ 4.) Defendants did not seek court authorization until their August 11, 2026 ex parte application. (Downey Decl. ¶ 14.) The second Spoonamore examination was not demanded until August 19, 2026. (Downey Decl. ¶ 11.) Thus, although Defendants sought relief before the September 8 cutoff, they did so only in the final weeks of the discovery period, and no order authorizing the requested discovery had been entered before the cutoff.

The moving papers request orders compelling the second deposition and examinations on dates after September 8, 2026, but do not request leave under section 2024.050 to complete discovery after that cutoff. Although the papers contain facts bearing on the necessity for the discovery and Defendants' diligence, they do not ask the Court to exercise its discretion under section 2024.050 or address the statutory considerations governing that relief. (See Code Civ. Proc., § 2024.050, subd. (b).) Alderman states that counsel met and conferred "regarding these issues" on several occasions, most recently on August 20, 2026. (Alderman Decl. ¶ 25.) The declaration does not state that counsel met and conferred regarding leave under section 2024.050 to complete the requested discovery after the September 8 cutoff. (See Code Civ. Proc., § 2024.050, subd. (a); See also Code Civ. Proc., § 2016.040.) Defendants argue that the Court may continue the trial date or the discovery-completion date. (Reply at p. 3.) No motion to continue the October 5, 2026 trial is before the Court, and the moving papers do not address the good-cause showing or factors governing a trial continuance under California Rules of Court, rule 3.1332(b)-(d).

The Court therefore declines to authorize discovery after the September 8, 2026 cutoff on the present motion.

Mental and Physical Examinations

A motion for a mental examination or additional physical examination "shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination." (Code Civ. Proc., § 2032.310, subd. (b).) Any order granting a physical or mental examination must specify, among other matters, the "manner, diagnostic tests and procedures, conditions, scope, and nature of the examination." (Code Civ. Proc., § 2032.320, subd. (d).) In the context of a mental examination involving standardized psychological testing, Carpenter holds that the diagnostic tests must be identified by name. (*Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 260.)

Here, Dr. Kuhn's demand provides for approximately eight hours of neuropsychological testing but does not identify any of the tests to be administered. (Alderman Decl., Ex. A.) Dr. Kambam's demand states that he will "conduct an examination" lasting up to seven hours, without describing whether the examination will consist of an interview, mental-status examination, diagnostic testing, or other procedures, or otherwise defining the manner and scope of the examination. (Alderman Decl., Ex. B.) Dr. Spoonamore's demand states that he will conduct a "full orthopedic examination of the areas of the body placed into controversy by plaintiff," but does not identify the body areas to be examined or otherwise describe the manner or procedures of the proposed second examination. (Alderman Decl., Ex. C.)

The request for an examination by Dr. Henry was not included in the notice of motion and was added by supplemental declaration filed three days later. (Alderman Supp. Decl. ¶¶ 2-5.) In any event, the supplemental request seeks an examination "on a date to be determined," and the attached demand states only that Dr. Henry will "conduct an examination," without identifying the body areas, manner, scope, or procedures of the examination. (Alderman Supp. Decl. ¶ 5, Ex. A.)

As such, even if properly considered, the moving papers do not provide the information necessary for the Court to enter an order satisfying section 2032.320, subdivision (d). The examination requests are denied on this additional ground.

CONCLUSION

Defendants' motion is denied. The October 5, 2026 trial date remains unchanged.

Dept. F-46

Hearing Date: September 18, 2026

Case Number: 23CHCV01671

PLAINTIFF'S MOTION FOR PROTECTIVE ORDER RE: DEPOSITION OF

DR. CHING LAM

Motion filed on September 8, 2026.

MOVING PARTY: Lorena Aguirre De Gonzalez (Plaintiff).

RESPONDING PARTY: City of San Fernando and Robert Louis

Gallegos (collectively, Defendants).

NOTICE: OK.

RELIEF REQUESTED: Plaintiff seeks a protective order

precluding Defendants from proceeding with the deposition of Dr. Ching Lam on

October 1, 2026.

RULING: Granted. Dr. Ching Lam's deposition shall not

proceed on October 1, 2026, as noticed.

BACKGROUND

On June 9, 2023, Plaintiff filed the Complaint alleging

negligent operation of a motor vehicle, vicarious liability, and negligent

hiring, training, supervision, retention, and entrustment.

On August 31, 2026, Plaintiff filed an ex parte application for a protective order concerning the October 1, 2026 deposition of Dr. Ching Lam or, alternatively, to advance the hearing and shorten time. (8/31/26 Ex Parte Application at pp. 2-4.) On September 1, 2026, the Court continued the hearing to September 18, 2026 and ordered Plaintiff's opening brief filed by September 9, Defendants' opposition by September 14, and Plaintiff's reply by September 16. (9/1/26 Minute Order.)

On September 8, 2026, Plaintiff filed the present motion and supporting declaration. Defendants filed an opposition on September 14, 2026. Plaintiff filed a reply on September 16, 2026.

Trial is set for October 5, 2026.

DISCUSSION

Code of Civil Procedure section 2025.420 authorizes a party to promptly move for a protective order concerning a deposition. For good cause shown, the Court "may make any order that justice requires" to protect a party or deponent from unwarranted annoyance, embarrassment, oppression, or undue burden and expense, including an order "[t]hat the deposition not be taken at all" or "[t]hat the deposition be taken at a different time." (Code Civ. Proc., § 2025.420, subds. (a), (b)(1)-(2).)

"Discovery is considered completed on the day a response is

due or on the day a deposition begins.” (Code Civ. Proc., § 2024.010.) A party is entitled as a matter of right to complete nonexpert discovery on or before the 30th day before trial. (Code Civ. Proc., § 2024.020, subd. (a).) Expert discovery must be completed on or before the 15th day before trial. (Code Civ. Proc., § 2024.030.) “On motion of any party, the court may grant leave to complete discovery proceedings . . . closer to the initial trial date.” (Code Civ. Proc., § 2024.050, subd. (a).) In ruling on such a motion, the Court considers, among other matters, the necessity for the discovery, the diligence of the party seeking it and the reasons it was not completed earlier, and whether permitting the discovery would interfere with trial or prejudice another party. (Code Civ. Proc., § 2024.050, subd. (b).)

Here, the general discovery-completion deadline was September 8, 2026. (Downey Decl. ¶ 3.) Defendants state that they designated Dr. Lam as a nonretained expert. (Alderman Decl. ¶ 5.) Even if the deposition is treated as expert discovery, the applicable completion deadline is September 21, 2026. (Code Civ. Proc., § 2024.030.) The October 1 deposition therefore falls outside either applicable discovery period.

Defendants first noticed Dr. Lam’s deposition for December 9, 2025. (Alderman Decl. ¶ 7.) After that setting did not proceed, Defendants did not serve another notice until May 15, 2026, approximately five months

later. (Reply at p. 3.) That notice set the deposition for June 18, 2026.

(Reply at p. 3.)

On June 16, 2026, Plaintiff advised Defendants that counsel

could not attend the June 18 deposition and requested alternative dates so the

deposition could be rescheduled as soon as possible. (Downey Decl. ¶ 7, Ex. 2

[6/16/26 email from Plaintiff's counsel].) Defendants responded that they had

cancelled the deposition and had requested new available dates from Dr. Lam.

(Downey Decl. ¶ 7, Ex. 2 [6/16/26 email from Defendants' counsel].) Defendants

further stated that they would "run the date by" Plaintiff before rescheduling.

(Ibid.)

No alternative date was communicated to Plaintiff until July

22, 2026, when Defendants served an amended notice setting the deposition for

September 3, 2026. (Downey Decl. ¶ 8, Ex. 2 [7/22/26 emails].) Plaintiff

responded approximately 30 minutes later that counsel could not attend because

of a legal conference. (Ibid.) Plaintiff also reminded Defendants of their

prior representation that Dr. Lam's available dates would be provided before

rescheduling and again requested alternative dates. (Ibid.)

The record reflects no response to that request until

Plaintiff followed up on July 28. (Downey Decl. ¶ 9, Ex. 2 [7/28/26 emails].)

Defendants then stated that they would "work on getting it moved" and asked

whether Plaintiff would object based on the discovery cutoff. (Ibid.) Plaintiff

responded that she preferred to complete the deposition by the September 8

cutoff but agreed to extend the deadline through September 16. (Ibid.)

Plaintiff further advised that, if additional time later proved “truly necessary”

because of scheduling constraints, the parties could discuss the issue further.

(Ibid.)

The next scheduling communication reflected in the record is

Defendants’ August 27, 2026 notice setting Dr. Lam’s deposition for October 1.

(Downey Decl. ¶ 10, Ex. 1.) Plaintiff immediately objected and stated that she

had received no further communication concerning Dr. Lam’s availability since

July 28. (Downey Decl. ¶ 10, Ex. 2 [8/27/26 emails].) Plaintiff reiterated her

willingness to complete the deposition by September 16. (Ibid.) Defendants

responded that Plaintiff had cancelled the deposition twice and that Dr. Lam

had no other dates. (Downey Decl. ¶ 11, Ex. 2 [8/27/26 email from Defendants’

counsel].)

Defendants state that Dr. Lam is a third party with limited

availability. (Alderman Decl. ¶ 8.) Defendants further state that October 1 was

his only remaining available date before trial. (Alderman Decl. ¶ 7.) The

opposition, however, does not identify when Defendants contacted Dr. Lam or his

office after June 16, what available dates were provided, or whether Defendants

attempted to obtain a date within Plaintiff's extension through September 16.

The opposition also does not identify when Defendants learned that October 1

was Dr. Lam's only remaining date. Nor does the opposition explain the

approximately five-month interval following the December 2025 setting. (Reply

at p. 3.) The documented record therefore shows successive deposition notices,

but not sustained efforts to coordinate and complete the deposition within the

applicable discovery period.

Defendants contend that Dr. Lam treated Plaintiff following

a February 2021 work-related incident involving headache, blurred vision, neck

pain, and left-extremity symptoms. (Alderman Decl. ¶ 6.) Defendants contend

that Dr. Lam's testimony bears on whether Plaintiff's present head, neck, and

shoulder claims are preexisting or unrelated to the subject collision.

(Alderman Decl. ¶ 5.) Plaintiff acknowledges that Dr. Lam's testimony is

relevant. (Reply at p. 3.)

Defendants have not moved under section 2024.050 for leave

to conduct Dr. Lam's deposition after the applicable discovery deadline.

Instead, Defendants argue in opposition that the Court may continue the trial

date or discovery-completion date. (Opp. at p. 3.) No noticed motion to

continue the October 5, 2026 trial is before the Court. The opposition does not

address the good-cause showing or factors governing a trial continuance under

California Rules of Court, rule 3.1332(b)-(d).

Good cause also exists for a protective order based on the timing of the proposed deposition. By October 1, the parties' medical experts will have provided their opinions and deposition testimony concerning Plaintiff's claimed cervical injuries and damages. (Downey Decl. ¶ 13.)

Plaintiff contends Dr. Lam's deposition may develop additional fact testimony concerning her pre-incident cervical treatment that could affect the parties' medical expert opinions. (Ibid.) Plaintiff further contends this could require additional expert review or further expert testimony concerning any resulting changes or additions to those opinions. (Ibid.) The deposition is scheduled only two business days before the October 5 trial. (Downey Decl. ¶¶ 2, 13.) That timing would leave little time to address any such developments before trial. Defendants do not address that asserted prejudice in opposition. (Reply at pp. 4-5.)

Considering that the October 1 deposition is set only two business days before the October 5 trial, Defendants' showing concerning their efforts to complete the deposition within the applicable discovery period, and the potential interference with trial preparation, good cause exists to preclude the deposition from proceeding on October 1, 2026, as noticed.

CONCLUSION

Plaintiff's motion for protective order is granted. Dr.

Ching Lam's deposition shall not proceed on October 1, 2026, as noticed. The

October 5, 2026 trial date remains unchanged.

EX-PARTE RULING

In chambers, the Court reads and considers the Ex Parte

Application and Opposition and rules as follows without hearing pursuant to CCP

§ 166(a):

The Ex Parte Application to Compel Surveillance Discovery

and Permit Investigator Deposition; or, Alternatively, for Leave to Specially

Set Motions to Compel After the Discovery Cutoff filed by Plaintiff Lorena

Aguirre De Gonzalez on September 17, 2026 is DENIED.

Plaintiff seeks ex parte relief compelling further responses

and production concerning surveillance, identification and deposition of any

surveillance investigator, or alternatively leave to specially set four motions

to compel after the discovery-motion cutoff.

Trial is set for October 5, 2026. The general discovery

cutoff was September 8, 2026, and the discovery-motion hearing cutoff is

September 21, 2026.

California Rules of Court, rule 3.1202(c) requires an

applicant for ex parte relief to make an affirmative factual showing in a

declaration, based on personal knowledge, of irreparable harm, immediate

danger, or another statutory basis for granting relief ex parte.

Code of Civil Procedure section 2024.050 permits the Court, on motion, to allow

discovery or a discovery motion closer to trial. In ruling on such relief, the

Court considers, among other matters, the diligence of the party seeking relief

and the reasons the discovery was not completed or the motion heard earlier.

Plaintiff served the supplemental discovery at issue on July

27, 2026. Defendants served the supplemental responses at issue on August 28,

2026. On August 31, Plaintiff requested further responses by September 4 and

stated that ordinary motion practice would not permit the dispute to be heard

before the discovery-motion cutoff. Plaintiff did not provide notice of this ex

parte application until September 17, 2026.

On this record, the Court is not persuaded that Plaintiff

has established the diligence and urgency necessary to adjudicate the discovery

dispute, specially set four discovery motions after the cutoff, or authorize

additional post-cutoff discovery on an ex parte basis.

Because the application does not satisfy the requirements

for ex parte relief, the Court does not reach the merits of the surveillance

discovery dispute.

The ex parte application is DENIED.

The Clerk is directed to give notice.